

Court No. - 3

Case :- WRIT - C No. - 4446 of 2022

Petitioner :- Devpal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Manish Pandey

Counsel for Respondent :- C.S.C., Krishna Agarawal, Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the parties.

2. This writ petition has been filed praying for the following reliefs :

"i) Issue a writ, order or direction in nature of certiorari quashing the Assessment order dated 27.11.2020 and 31.08.2020, issued by the Executive Engineer, U.P. Power Corporation, Ltd. Electricity Distribution block Babrala, issued by the respondent no.4.

ii) Issue a writ in nature of mandamus directing the executive engineer to consider the objection filed by the petitioner against the provisional assessment order dated 31.08.2020 and pass a fresh order of final assessment.

iii) Issue a writ, order or direction in the nature of mandamus directing the respondents to compensate the amount of this writ petition"

3. Shri Rajesh Yadav, learned counsel for the respondent nos.2, 3 and 4/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.4 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be

decided by the respondent no.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 20.5.2022

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